

Amendment No. 1 to SB2397

Briggs
Signature of Sponsor

AMEND Senate Bill No. 2397

House Bill No. 1447*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 9, Chapter 4, is amended by adding the following as a new part:

9-4-1601.

This part is known and may be cited as the "Tennessee Trump Account Program Act".

9-4-1602.

As used in this part, unless the context otherwise requires:

(1) "Federal law" means federal law, as amended, and all rules, regulations, notices, guidance, and interpretations released by the United States department of the treasury, including the internal revenue service.

(2) "State" means the state of Tennessee; and

(3) "Trump account" means an account established in accordance with § 530A of the Internal Revenue Code (26 U.S.C. § 530A), as amended, other applicable provisions in the code, and all rules, regulations, notices, guidance and interpretations released by the United States department of the treasury, including the internal revenue service.

9-4-1603.

Notwithstanding any law to the contrary and subject to the approval of the United States department of the treasury, the state may act as a nonbank custodian pursuant to 26 CFR § 1.408-2(e) for Trump account funds, subject to requirements in federal law. If

the state receives the approval to act as a nonbank custodian pursuant to 26 CFR § 1.408-2(e), then a Trump account program may be established through a subsequent enactment of the general assembly.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.